

IN THE HIGH COURT OF JHARKHAND AT RANCHI
W.P. (C) No. 132 of 2016

Umesh Kumar Singh @ Umesh Singh --- --- ---- Petitioner
Versus
1. State Election Commission through the
State Election Commissioner
2. Ramesh Harshdhar --- --- --- Respondents

CORAM: The Hon'ble Mr. Justice Aparesh Kumar Singh

For the Petitioner: Mr. A.K. Das, Ms. Jyoti Nayan Advocates
For the Resp No. 1: M/s Sumeet Gadodia, Prem Pujari Roy, Advocates
For the Resp No. 2: Mr. Indrajit Sinha, Advocate

07/ 30.03.2016 Heard counsel for the parties.

2. The legal issue involved herein is, whether petitioner has been rightly disqualified by the impugned order dated 21.12.2015 passed by the respondent Election Commission under Section 18(1)(k) of Jharkhand Municipal Act, 2011 for non-furnishing affidavit of his conviction in Koderma (T) P.S. Case No. 221/1995 corresponding to G.R. No. 523/1995, T.R. No. 745/2012 for the offences under sections 147, 323 and 337 of Indian Penal Code by the Court of Judicial Magistrate, 1st Class, Koderma. (petitioner had been released after warning under section 3 of Probation of Offenders Act, 1958) and whether such non-furnishing of affidavit along with his nomination paper would come within the meaning of corrupt practices as defined under section 586 of the Act of 2011.

3. The undisputed facts are as follows:

Petitioner was a candidate for the post of Chairperson of Nagar Parishad, Jhumaritilaiya, election of which were held in the year 2015. Petitioner filed his nomination paper as prescribed in amended form-24 under Chapter-5 paragraph-5.16 of Appendix VIII of the Handbook of Municipal Election issued by the State Election Commission. Petitioner did not enclose any affidavit about his conviction in the aforesaid criminal case being Koderma (T) P.S. Case No. 221/1995 along with his nomination paper. He got elected as Chairperson of Jhumaritilaiya Municipal Council. The failure to furnish the aforesaid information by way of an affidavit, was complained by the private respondent i.e. Respondent No. 2 herein before the State Election Commission, as he was the losing candidate. He also filed

election petition being Election Petition No. 01/2015 before the Election Tribunal i.e. the court of learned Sub Judge (Civil Judge, Senior Division-IV,) Koderma. After obtaining report from the Returning Officer of the said election and after issuing notice upon the petitioner in Case No. 13/2015 instituted on the complaint of the private respondent, State Election Commission by the impugned order dated 21.12.2015, has held the omission on the part of the petitioner to be an act of corrupt practices as defined under section 123 (2) of Representation of People Act, 1951 read with section 18(1)(k) of the Act of 2011. Invoking the powers under section 18 of the Act of 2011 read with Rule 112(2) of Jharkhand Municipal Nirwahan awam Chunaw Yachika Rules, 2012, it has disqualified the petitioner from holding the said office with immediate effect and further held him to be disqualified from Membership of all Local Authorities for six years, however such disqualification shall cease after six years of the General Municipal Election held in the month of May 2015.

4. Petitioner has assailed the impugned order inter-alia on the following three grounds:

i. that there was no deliberate suppression of relevant information by the petitioner while filing his nomination as the nomination form did not categorically prescribe supply of information in relation to conviction where the person convicted, has not been sentenced to two years or more of imprisonment. Specific particulars enumerated in column-5 of nomination paper which is at Annexure-A to the counter affidavit of the Respondent No. 2 has been read out in support of the aforesaid submission.

ii. the second ground urged on his behalf is to the effect that conviction of the petitioner under sections 147, 323 and 337 of Indian Penal Code in Koderma (T) P.S. Case No. 221/1995 and his consequent release by the learned Trial Court in exercise of powers under Probation of Offenders Act, 1958, did not amount to disqualification in contesting election as per section 12 of the Act of 1958. If such

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conviction did not amount to disqualification from contesting election, non disclosure thereof could not be treated in any way as amounting to corrupt practices in the nature of 'unduly influencing' the Electorate in free exercise of right to franchise,

iii. in a similar case where one Rakesh Kumar Sharma while seeking election to Nagar Parishad, Jhumaritalaiya in 2010 failed to disclose his implication in several criminal cases by filing an affidavit in support of his nomination paper, State Election Commission had, by order dated 02.07.2014 passed in his case (Annexure-7), did not hold him disqualified from contesting election for the next six years and only directed institution of FIR for filing a false affidavit under section 543 of Jharkhand Municipal Act, 2011.

5. Additionally, it is urged by meeting the contention of the counsel for the respondent Election Commission and the private respondent based upon a judgment rendered by the Apex Court in the case of **Krishnamoorthy vs. Sivakumar and others (2015) 3 SCC 467**, that the petitioner was not involved in any such crime which is heinous in nature or involving moral turpitude or corruption. The maximum sentence under the offences for which he was prosecuted, entails a punishment of two years only i.e. under section 147 of the Indian Penal Code, while rest of the two offences under sections 323 and 337 IPC entail a maximum sentence of six months and / or fine. It is submitted that the respondents have failed to make out a case that information disclosed by the petitioner were ever put in public domain for consumption of the electorate who can be said to have been unduly influenced in exercise of their franchise on account of alleged suppression of such information by the petitioner. Based upon these submissions, learned counsel for the petitioner has assailed the impugned order.

6. Learned counsel for the respondent-Election Commission has referred to the provisions of Article 243ZA under Part-IX-A of Constitution of India which confers powers on State Election Commission of Superintendence, Direction and Control of

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the preparation of electoral rolls for and the conduct of all elections to the Municipality. Such provisions also empowers the Legislature of the State to make a law with respect to all matters relating to election of Municipality. Under this enabling provisions, Jharkhand Municipal Act, 2011 has been framed which apart from other provisions relating to the constitution of Municipality / Municipal Corporation, also makes provisions for conduct of election for such Municipal Bodies. Section 18 prescribes the condition of disqualification of Councilor. Section 18(1)(k) has been specifically referred to, which provides for disqualification if person is found guilty of corrupt practices. It entails disqualification for a period of six years from the date of general election. Section 543 provides for furnishing of certain information essential for the candidates and on failure to do so, penalty is prescribed under section 544. Section 543(1)(a) provides for furnishing of information on affidavit by a candidate in relation to his candidature; whether he is convicted, acquitted or discharged of any criminal offence in the past, if any; whether he is punished with imprisonment or fine. Section 586 has also been relied upon which defines corrupt practices. Section 586(b) has been relied upon by the counsel for the respondent which spells that undue influence as defined in Clause (ii) of section 123 of Representation of the People Act, 1951 would be treated as corrupt practices. Learned counsel for the respondent Commission submits that the Hon'ble Supreme Court in the case of **Krishnamoorthy (Supra)** while dealing with the matter relating to non-disclosure of criminal antecedent of candidate in entirety and in full detail, has held that it would amount to undue influence and therefore, a corrupt practice. Para-9 of the said judgment has specifically been read out in support of the submission that it is necessary for the candidate to give all particulars in his nomination form so that the electorate can be properly informed, advised and resort to free exercise of right of franchise.

7. Learned counsel in the wake of the factual matrix of the case, referred to

herein-above and provisions of law relied upon, concluded his submission by saying that the decision to disqualify the petitioner for indulging in corrupt practices by the Election Commission, is wholly proper, in conformity with the provisions of Constitution, the Parent Act of 2011 and rules framed thereunder. Learned counsel for the respondent Commission has tried to distinguish the case of Rakesh Kumar Sharma where order was passed on 02.07.2014 on the plea that such an approach was adopted by the State Election Commission on the said subject before the judgment was delivered by the Apex Court in 2015 in the case of **Krishnamoorthy (Supra)**. However, after the pronouncement of law, Commission has rightly chosen to follow the dicta and disqualified the petitioner for a period of six years from the date of election 2015.

8. Learned counsel for the private respondent has supported the submission of the learned counsel for the State Election Commission and further added that the petitioner had consciously not disclosed the information relating to his conviction in the said criminal case being Koderma (T) P.S. Case No. 221/1995 by way of an affidavit. Petitioner had one day before filing of the nomination form, withdrawn the criminal revision being Criminal Revision No. 90/2011 preferred against the appellate order passed by the learned District and Sessions Judge, Koderma upholding his conviction in the Koderma (T) P.S. Case No. 221/1995. The nomination paper was filed on the very next date i.e. 06.05.2015. It is submitted that as per the prescribed format of the nomination form, petitioner was required to state the pendency of the criminal revision petition by way of an affidavit, in the respective column at Clause 5-iii (kha). It is submitted that it is immaterial, whether information furnished by the petitioner in nomination form was put in public domain or had been sought by anyone for influencing the Electorate in its exercise of franchise during the conduct of such election in Jhumaritalaiya Municipal Council. It is further submitted that deliberate omission on the part of the petitioner in violation of specific requirement of law under section 543(1)(a) of the Act of

2011 read with section 586(b) and parameteria provisions of section 123 of Representation of People Act, 1951 and in the light of what has been held by the Apex Court in the case of **Krishnamoorthy (Supra)**, leaves no room of doubt that the State Election Commission was perfectly justified in holding the petitioner responsible for indulging in corrupt practices and his consequent disqualification. It is submitted that the pendency of election petition before the Election Tribunal to challenge the election of successful candidate i.e. petitioner is to be decided on its own facts and merits and it would not denude the Election Commission from entertaining a complaint in matters relating to resort to corrupt practices as it has the power of Superintendence, Direction and Control of the preparation of electoral rolls and for conduct of all such Municipal Election within the State under the provisions of Article 243ZA of Constitution of India read with law enacted by State Legislature in the Act of 2011. Reliance has also been placed by the learned counsel for the private respondents on the judgment rendered by the Apex Court in the case of **Union of India vs. Association for Democratic Reforms and Another (2002) 5 SCC 294** paragraph-46 and 48 thereof. The judgment rendered by the Apex Court deals with the provisions of Article 19(1)(a) relating to freedom of speech and expression and recognizes the right of voter to exercise its franchise fully informed and advised. It is submitted that the law laid down therein in context of Article 324 of Constitution of India clearly mandates a candidate seeking election not only to the Parliament or State Legislature, but also to any such local body, to disclose whether he is convicted / acquitted / discharged of any criminal offence; whether he is punished with imprisonment and fine. Provisions under section 543 of Act of 2011 are only in furtherance of the law laid down by the Apex Court on the subject and the petitioner cannot escape from his liability to disclose vital information relating to his conviction by way of an affidavit. He cannot presume ignorance of law in the presence of statutory provisions relating to furnishing essential information by a candidate seeking election to any such Municipal Council.

8. I have considered the submissions of the parties at some detail and gone through the relevant provisions of law, pleadings and judgments relied upon by them. It is beyond cavil that the State Election Commission enjoys the overarching power of Superintendence, Direction and Control in the matter of conduct of all elections of Municipality under Article 243ZA of Constitution of India. Article 243ZA reads as under.

“243ZA.- Elections to the Municipalities.-(1) The superintendence, direction and control of the preparation of the electoral rolls for, and the conduct of, all elections to the Municipalities shall be vested in the State Election Commission referred to in Article 243K.

(2) Subject to provisions of this Constitution, the Legislature of a State may, by law, make provision with respect to all matters relating to, or in connection with, election to the Municipalities.”

Article 243V prescribes the conditions for disqualification of membership which is also relevant for being quoted hereunder:

“243V. Disqualifications for membership.- (1) A person shall be disqualified for being chosen as, and for being, a member of a Municipality-

(a) If he is so disqualified by or under any law for the time being in force for the purposes of elections to be Legislature of the State concerned:

Provided that no person shall be disqualified on the ground that he is less than twenty-five years of age, if he has attained the age of twenty-one years;

(b) if he is so disqualified by or under any law made by the Legislature of the State.

(2) If any question arises as to whether a member of a Municipality has become subject to any of the disqualifications mentioned in clause (1), the questions shall be referred for the decision of such authority and in such manner as the Legislature of a State may, by law, provide.

The State Legislature has enacted the Jharkhand Municipal Act, 2011 in furtherance of the Constitutional mandate under Part IXA read with Twelveth Schedule of Constitution of India. Conditions for disqualification have been specifically enumerated at Section 18 of the Act of 2011, which reads as under:

18. Disqualification of Councillors:

(1) Notwithstanding anything contained in this Act, a person shall be disqualified for election or after election for holding

the office as councilor, if such person:

- (a) is not a citizen of India;
- (b) is so disqualified by or under any law, for the time being in force, for the purpose of elections to the Legislature of the State;
- (c) is in the service of the Central or State Government or any local authority;
- (d) is in the service of any institution receiving aid from the Central or State Government or any local authority;
- (e) has been adjudged by a competent court to be of unsound mind;
- (f) applies to be adjudicated or is adjudicated as an insolvent;
- (g) has been dismissed from the service of the Central or State Government or any local authority for misconduct and has been declared to be disqualified for employment in the public service;
- (h) has been sentenced by a criminal court, whether within or outside India, to imprisonment for an offence, other than a political offence for a term exceeding six months or has been ordered to furnish security for keeping good behavior under section 109 or section 110 of the Code of Criminal Procedure, 1973 and such sentence or order not having subsequently been reversed, or absconding being an accused in a criminal case for more than six months;
- (i) has under any law for the time being in force become ineligible to be member of any local authority;
- (j) holds any salaried office or office of profit under the Municipality;
- (k) has been found guilty of corrupt practices;
- (l) if he has not paid all taxes due by him to the Municipality at the end of the financial year immediately preceding that in which the election is held;
- (m) has been willfully omits or refuse to perform his duties and functions or abuses the power vested in him or is found to be guilty of misconduct on the discharge of his duties or become physically or mentally incapacitated for performing his duties;
- (n) if he has more than two living children;

Provided that a person having more than two children on or upto the expiry of one year of the commencement of the Act shall not be deemed to be disqualified;

- (o) has been absent from three consecutive meetings of sitting of the Municipality without having previously obtained permission from the council at a meeting.

2. If any question arises as to whether a Member of a Municipality at any level was before election or has become after election subject to any disqualifications mentioned in sub section (1), the question shall be referred for the decision of the State Election Commission. The matter of disqualification may be brought to the notice of the State Election Commission in the form of a complaint, application or information by any person or authority. The State Election Commission may also take suo-moto cognizance of such matters and decide such matters expeditiously after allowing sufficient opportunity to the affected parties of being heard.

(3) If a person, who is chosen as a member of a Municipality, is or becomes a member of Lok Sabha, Rajya Sabha, Legislative Assembly, or is or becomes a member of Panchayat or Mukhia or Sarpanch then within fifteen days from the date of commencement of the term of office of a member of the Lok Sabha, Rajya Sabha, Legislative Assembly or a member of a Panchayat or Mukhia or Sarpanch, his seat in the Municipality shall become vacant unless he has previously resigned his seat in the Lok Sabha, Rajya Sabha, Legislative Assembly or Panchayat, as the case may be.”

Section 543 of the Act of 2011 prescribes for furnishing of essential information by a candidate seeking election to any such Municipal Body. Section 543 is quoted hereunder:

543. Furnishing of certain information essential for candidates -

(1) A candidate shall, apart from any information which he is required to furnish in his nomination papers delivered under the Act or the rules made thereunder, also furnish information on affidavit on the following aspects in relation to his / her candidature -

(a) whether he is convicted or acquitted or discharged of any criminal offence in the past, if any, whether he is punished with imprisonment or fine;

(b) whether the candidate is accused in any pending case, or of any offence punishable with imprisonment for more than six months, and in which a charge has been framed or cognizance has been taken by a competent court of law prior to six months of filing of nominations, and if so, the details thereof,

(c) the assets (including movable, immovable and bank balances, etc.) of a candidate, and of his / her spouse and that of his / her dependents,

(d) the liabilities, if any, particularly whether there are any overdues of any public financial institution or Government dues, and

(e) the educational qualifications of the candidate.

(2) In case of non-furnishing of the affidavit by any candidate, the nomination of the candidate shall be liable to rejection by the Returning Officer at the time of scrutiny of nominations for such non-furnishing of the affidavit.

(3) The information so furnished by each candidate in the affidavit referred in sub section (1) shall be disseminated by the respective Returning Officer by displaying a copy of the affidavit on the notice board of his office and also by making copies thereof available freely and liberally to the representatives of the print and electronic media and to any other candidate or person on deposit of free as prescribed by the State Election Commission.

(4) If any rival candidate furnishes information to the contrary by means of a duly sworn affidavit, then such affidavit of the rival candidate shall also be disseminated along with the affidavit of the candidate concerned in the manner directed

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above.

9. It is evident from reading of the provisions of section 543(1)(a) that a candidate seeking election has to disclose the information as required in the nomination paper delivered under the Act or rules and at the same time, furnish information on affidavit on the following aspects, apart from other requirements enumerated thereunder.

(a) Whether he is convicted or acquitted or discharged of any criminal offence in the past, if any;

(b) whether he is punished with imprisonment or fine.

10. The contention of the petitioner that nomination form did not specifically contain particulars for disclosure of his conviction in Koderma (T) P.S. Case No. 221/1995 in which he was let out on probation and that, he should not be held responsible for failure to disclose the essential information while filing such nomination, is straightaway dispelled by the provisions of section 543(1)(a) referred to herein-above. No one can plead ignorance of law if statute book under which the entire election of the Municipal Bodies is held, clearly provides for furnishing information on affidavit in matters of candidature of a person seeking election i.e. whether he is convicted / acquitted / discharged of any criminal offence in the past. This leaves no room of doubt that the petitioner was definitely guilty of suppressing relevant information by way of an affidavit while filing his nomination form. Additionally, withdrawal of the criminal revision no. 90/2011 one day before filing of his nomination form on 06.05.2014 gives rise to suspicion that it was a deliberate act consciously done with a view not to make reference of such conviction in the nomination form at Clause-5(ii)(kha). Where a candidate deliberately omitted to disclose the information of his conviction in a criminal case, the Hon'ble Supreme Court in the case of **Krishnamoorthy (Supra)** after dealing with the relevant provisions of section 123 of Representation of Peoples Act, 1951 and also other relevant provisions of the Act of 1951 and the precedents on the point, held that if the candidate has the special knowledge of the case in which he

has been convicted or is pending, non-disclosure on his part in entirety and in full detail, would amount to a conscious suppression of fact intended to 'unduly influencing' the electorate which is expected to exercise its franchise without being misguided, fully informed and advised. The electorate is required to exercise its right in a free manner having all the details of the candidates. Whether a Member of electorate has chosen to seek information furnished by the candidate like the petitioner before exercising its franchise, is immaterial to the point in issue as the candidate seeking election is under bounden obligation of law as laid down by the Apex Court in the case of **Association for Democratic Reforms (Supra)** to furnish all details relating to his conviction / acquittal / discharge in any criminal offence in the past. Opinion of the Apex Court rendered in the case of **Krishnamoorthy (Supra)** contained in Para-91, is profitable to be quoted hereunder:

91. The purpose of referring to the instructions of the Election Commission is that the affidavit sworn by the candidate has to be put in public domain so that the electorate can know. If they know the half truth, as submits Mr Salve, it is more dangerous, for the electorate is denied of the information which is within the special knowledge of the candidate. When something within special knowledge is not disclosed, it tantamounts to fraud, as has been held in *S.P. Chengalvaraya Naidu v. Jagannath*. While filing the nomination form, if the requisite information, as has been highlighted by us, relating to criminal antecedents, is not given, indubitably, there is an attempt to suppress, effort to misguide and keep the people in dark. This attempt undeniably and undisputedly is undue influence and, therefore, amounts to corrupt practice. It is necessary to clarify here that if a candidate gives all the particulars and despite that he secures the votes that will be an informed, advised and free exercise of right by the electorate. That is why there is a distinction between a disqualification and the corrupt practice. In an election petition, the election petitioner is required to assert about the cases in which the successful candidate is involved as per the rules and how there has been non-disclosure in the affidavit. Once that is established, it would amount to corrupt practice. We repeat at the cost of repetition, it has to be determined in an election petition by the Election Tribunal.

The opinion of the Apex Court in the case of **Association for Democratic Reforms (Supra)** contained in para-46 and 48 has summed up the legal & constitutional provisions as under:

46. To sum up the legal and constitutional position which emerges from the aforesaid discussion, it can be stated that:

1. The jurisdiction of the Election Commission is wide enough to

include all powers necessary for smooth conduct of elections and the word “elections” is used in a wide sense to include the entire process of election which consists of several stages and embraces many steps.

2. The limitation on plenary character of power is when Parliament or State Legislature has made a valid law relating to or in connection with elections, the Commission is required to act in conformity with the said provisions. In case where law is silent, Article 324 is a reservoir of power to act for the avowed purpose of having free and fair election. The Constitution has taken care of leaving scope for exercise of residuary power by the Commission in its own right as a creature of the Constitution in the infinite variety of situations that may emerge from time to time in a large democracy, as every contingency could not be foreseen or anticipated by the enacted laws or the rules. By issuing necessary directions, the Commission can fill the vacuum till there is legislation on the subject. In *Kanhiya Lal Omar case* the Court construed the expression “superintendence, direction and control” in Article 324(1) and held that a direction may mean an order issued to a particular individual or a precept which many may have to follow and it may be a specific or a general order and such phrase should be construed liberally empowering the Election Commission to issue such orders.

3. The word “elections” includes the entire process of election which consists of several stages and it embraces many steps, some of which may have an important bearing on the process of choosing a candidate. Fair election contemplates disclosure by the candidate of his past including the assets held by him so as to give a proper choice to the candidate according to his thinking and opinion. As stated earlier, in *Common Cause case* the Court dealt with a contention that elections in the country are fought with the help of money power which is gathered from black sources and once elected to power, it becomes easy to collect tons of black money, which is used for retaining power and for re-election. If on an affidavit a candidate is required to disclose the assets held by him at the time of election, the voter can decide whether he could be re-elected even in case where he has collected tons of money.

Presuming, as contended by the learned Senior Counsel Mr Ashwani Kumar, that this condition may not be much effective for breaking a vicious circle which has polluted the basic democracy in the country as the amount would be unaccounted. Maybe true, still this would have its own effect as a step-in-aid and voters may not elect law-breakers as law-makers and some flowers of democracy may blossom.

4. To maintain the purity of elections and in particular to bring transparency in the process of election, the Commission can ask the candidates about the expenditure incurred by the political parties and this transparency in the process of election would include transparency of a candidate who seeks election or re-election. In a democracy, the electoral process has a strategic role. The little man of this country would have basic elementary right to know full particulars of a candidate who is to represent him in Parliament where laws to bind his liberty and property may be enacted.

5. The right to get information in democracy is recognised all throughout and it is a natural right flowing from the concept of democracy. At this stage, we would refer to Article 19(1) and (2) of the International Covenant on Civil and Political Rights, which is as under:

“(1) Everyone shall have the right to hold opinions without interference.

(2) Everyone shall have the right to freedom of expression; *this right shall include freedom to seek, receive and impart information and ideas of all kinds*, regardless of frontiers, either orally, in writing or in print, in the form of art, or through any other media of his choice.”

6. On cumulative reading of a plethora of decisions of this Court as referred to, it is clear that if the field meant for legislature and executive is left unoccupied detrimental to the public interest, this Court would have ample jurisdiction under Article 32 read with Articles 141 and 142 of the Constitution to issue necessary directions to the executive to subserve public interest.

7. Under our Constitution, Article 19(1)(a) provides for freedom of speech and expression. Voter’s speech or expression in case of election would include casting of votes, that is to say, **voter speaks out or expresses by casting vote**. For this purpose, information about the candidate to be selected is a must. Voter’s (little man — citizen’s) right to know antecedents including criminal past of his candidate contesting election for MP or MLA is much more fundamental and basic for survival of democracy. **The little man may think over before making his choice of electing law-breakers as law-makers.**

48. The Election Commission is directed to call for information on affidavit by issuing necessary order in exercise of its power under Article 324 of the Constitution of India from each candidate seeking election to Parliament or a State Legislature as a necessary part of his nomination paper, furnishing therein, information on the following aspects in relation to his/her candidature:

(1) Whether the candidate is convicted/acquitted/discharged of any criminal offence in the past — if any, whether he is punished with imprisonment or fine.

(2) Prior to six months of filing of nomination, whether the candidate is accused in any pending case, of any offence punishable with imprisonment for two years or more, and in which charge is framed or cognizance is taken by the court of law. If so, the details thereof.

(3) The assets (immovable, movable, bank balance, etc.) of a candidate and of his/her spouse and that of dependants.

(4) Liabilities, if any, particularly whether there are any overdues of any public financial institution or government dues.

(5) The educational qualifications of the candidate.”

10. It is evident that the Legislature while framing the Act of 2011, has consciously introduced the provisions of section 543 which requires furnishing of certain essential information by the candidate. It is immaterial whether release of the petitioner under the provisions of Probation of Offenders Act and rescue from disqualification under section 12 of the said Act, is going to affect the issue required to be decided in the instant matter. Petitioner was definitely under an obligation of law, as per the mandate declared by the Apex Court as also the statutory mandate

under the Act of 2011 to disclose vital information relating to his conviction.

11. Consideration of all these issues raised by the petitioner in the backdrop of the factual canvass of the case and provisions of law and judgment on the point relied upon herein-above, lead to the inescapable conclusion that the impugned order does not suffer from any legal or factual infirmity requiring interference in exercise of Article 226 of Constitution of India. Writ petition is accordingly dismissed.

(Aparesh Kumar Singh, J)

Ranjeet/